challenges posed by firearms today are not always the same as those that preoccupied" earlier generations. *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1, 27 (2022). The key question is whether the challenged regulation is "consistent with the *principles* that underpin our regulatory tradition." *United States* v. *Rahimi*, 602 U. S. 680, 692 (2024) (emphasis added). Here, the challenged law is consistent with those principles because it reflects, as the old laws did, the perceived "abuses, damages and inconveniences" that can be caused by persons carrying guns "on other people's lands." 1721 Pa. Laws ch. 246, § 3 (preamble), in 3 The Statutes at Large of Pennsylvania From 1682 to 1801, p. 255 (J. Mitchell & H. Flanders eds. 1896). That conclusion is enough for me to resolve this case, without addressing *Bruen*'s step-one inquiry or the use at step two of Louisiana's Black Code. I therefore respectfully dissent.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, dissenting.

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Today the Court declares unconstitutional Hawaii's efforts to protect the rights of its residents—both those who wish to carry guns and those who prefer that guns are not carried on their private property without their express permission. To hear the majority tell it, Hawaii's law is a blatant attempt to end-run our Second Amendment precedents. But the statute at issue does no such thing. Instead, it fairly applies a first principle of property law—the right to exclude—and does no harm to the Second Amendment.

The majority thinks otherwise; it reaches today's result by purporting to apply the test we established in *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1 (2022). But the majority gets both the *Bruen* test and its application wrong. Hawaii's law does not implicate the Second Amendment because there is no right to carry a gun onto private property without consent (as all agree), and the Constitution does not dictate the form of that required consent. And

even if the Second Amendment were implicated here, Hawaii has proffered ample analogues demonstrating a history and tradition of States protecting their residents' property rights by requiring those wishing to carry guns onto private property to get express consent from the property owner before doing so.

For what it is worth, I think *Bruen* was wrongly decided. But if it is going to be our precedent, the majority should at least endeavor to apply it faithfully. I respectfully dissent because the majority has failed to do so here, and its analysis and conclusion only further bind the hands of modern legislatures attempting to balance and protect their residents' interests. With this decision, the Court has now manipulated *Bruen* into a free-for-all that lets the Judiciary thwart the will of legislatures by privileging access to firearms above all else. Today's decision makes one thing clear: The Court's objective is protecting guns, not consistently preserving any principle of law.

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I

Since its time as a sovereign kingdom, Hawaii has never permitted the widespread carrying of firearms in its territory. In 1833, King Kamehameha III of the Kingdom of Hawaii prohibited the possession of "dangerous weapon[s]." Translation of the Constitution and Laws of the Hawaiian Islands, Established in the Reign of Kamehameha III 163 (1842) (reprint 1934) (targeting possession of any "knife, sword-cane, or any other dangerous weapon"). Hawaii maintained this tradition of strictly regulating weapons both before and after it was annexed as a U. S. territory in 1898. See, *e. g.*, Act of May 25, 1852, § 1, 1852 Haw. Sess. Laws 19 (expanding definition of deadly weapons); Haw. Rev. Laws, ch. 209, § 3089 (1905), as amended by Act of Mar. 19, 1913, § 1, 1913 Haw. Sess. Laws 25.

In 1927, Hawaii began regulating firearms in particular by carefully controlling who may carry them. Act 206, § 5, 1927

Haw. Sess. Laws 209–211. Such regulation continued even after statehood in 1959, when Hawaii began allowing private gun ownership but only if the applicant could show an "exceptional case." Act 163, § 1, 1961 Haw. Sess. Laws 215. Thus, "[t]he history of the Hawaiian Islands does not include a society where armed people move about the community." *State* v. *Wilson*, 154 Haw. 8, 27, 543 P. 3d 440, 459 (2024).

That custom continued until very recently. Prior to this Court's decision in *Bruen*, Hawaii issued concealed-carry permits only in "exceptional case[s]," which required "an applicant [to] sho[w] reason to fear injury to the applicant's person or property." Haw. Rev. Stat. § 134–9(a) (2011). The result? Hawaiians have rarely carried (or encountered others carrying) guns.

Following *Bruen*'s rejection of licensing schemes like Hawaii's, the State was forced to alter its long-standing tradition. To accomplish this, it enacted Act 52, which allowed for concealed-carry permits to issue after applicants passed a background check and underwent a training process. See 2023 Haw. Sess. Laws 113–136. Act 52 also restricted where and how license holders could carry their guns. See § 2, *id.*, at 114–119 (codified at Haw. Rev. Stat. §§ 134–9 to 134–9.5 (2023)).

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One problem that Hawaii confronted as it undertook to implement Act 52 was how best to protect Hawaiians who, accustomed to the traditional practice, might not be aware that gun laws were changing to allow for armed—and concealed—carry in everyday life. In particular, given Hawaii's history, private property owners were unlikely to expect guns to be carried onto their property or to know that they needed to take steps if they did not wish to permit armed entry. See *Wilson*, 154 Haw., at 27, 543 P. 3d, at 459 (noting lack of custom of armed carry). The community was up in arms about this (so to speak). Hawaii's Legislature held hearings and received testimony from residents and the business community indicating that private property owners

did not want people carrying guns onto their property without their express consent.[1]

This input from Hawaii's residents mirrored evidence from around the country. One nationwide study revealed widespread public misunderstanding about whether it was lawful to bring a gun onto private property. See I. Ayres & S. Jonnalagadda, Guests With Guns: Public Support for "No Carry" Defaults on Private Land, 48 J. Law Med. & Ethics 183, App. 8, Table A5 (2020). Not only that, but the study's respondents generally had preferences *against* armed carry in certain spaces, even spaces open to the public. See *id.*, at 186 ("Only about one-quarter of respondents (25.1%) expressed support for a default right of employees to bring guns into their places of employment . . . . A larger, but still minority proportion of respondents (44.2%), believe customers, by default, should be allowed to carry into retail establishments"); *id.*, at 185, Table 1.

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A straightforward solution emerged: Act 52 would require gun owners to get affirmative consent from the property owner before carrying a firearm onto private property. See *id.*, at 188–189 (suggesting this approach). Hawaii codified this affirmative-consent solution in § 134–9.5, prohibiting a concealed-carry permit holder from carrying a handgun onto private property unless the permit holder has "been given express authorization to carry a firearm on the property by the owner, lessee, operator, or manager of the property," or agent thereof. § 134–9.5. Under § 134–9.5(b), such express authorization could be either by "[u]nambiguous written or verbal authorization" or by "[t]he posting of clear and con-

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[1] See, *e. g.*, Hawaii House of Representatives Committee on Finance, Public Hearing on Senate Bill HI SB 1230, at 3:32:24 to 3:32:38 (Apr. 5, 2023), youtube.com/watch?v=nwDy5fqtzTg (archived at https://perma.cc/62GZ-YJJ8) (testimony of G. Abrena-Agas) ("We support allowing owners of private property to choose whether they want to opt in to authorizing concealed carry on their properties and also choose to opt in to providing signage on their properties for that").

spicuous signage at the entrance of the building or on the premises."

Section 134–9.5 thus helped narrow the informational asymmetry caused by the potential sea change in Hawaii's gun-possession rates. Indeed, the enacted law stated that the legislature had adopted the rule to "respec[t] the right of private individuals and entities to choose for themselves whether to allow or restrict the carrying of firearms on their property" and to promote "public health, safety, and welfare." 2023 Haw. Sess. Laws 114. By enacting § 134–9.5, Hawaii chose to protect the unaware property owner while leaving open to gun owners the opportunity to carry firearms where consent has been provided.

Notably, in making this choice, Hawaii was not alone. It joined four other States that had similar laws. See Cal. Penal Code Ann. § 26230(a)(26) (West Cum. Supp. 2025); N. J. Stat. Ann. § 2C:58–4.6(a)(24) (West 2024); Md. Crim. Law Code Ann. § 6–411 (Supp. 2025); N. Y. Penal Law Ann. § 265.01–d(1) (West 2025).

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II

Petitioners believe that having to ask for permission to carry a firearm onto private property open to the public is an unconstitutional burden on their Second Amendment rights. But their bid to invoke the Constitution stumbles out of the gate—at step one of this Court's *Bruen* test.[2] There is no constitutional right to enter private property without the owner's permission, let alone with a firearm. So the question this case presents is merely how a property owner must

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[2] The Court's decision in *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1 (2022), prescribed a two-step inquiry for assessing Second Amendment challenges to government regulation. The first step asks whether the challengers have shown that the plain text of the Second Amendment, which codified a pre-existing right to carry, covers an individual's conduct. *Id.*, at 24. If it does, "[t]he government must then justify its regulation by demonstrating that it is consistent with the Nation's historical tradition of firearm regulation." *Ibid.*

communicate his decision to exclude or to invite armed carry, including whether a State may alter the background property-law rules that set the default as one or the other. The Second Amendment has nothing to say about that. Petitioners' constitutional rights are thus not implicated here, and their claim should meet its end at *Bruen*'s first step.

To avoid this obvious outcome, the majority has to reconceptualize *Bruen*. Instead of applying a threshold criterion asking whether the challengers have shown that the plain text of the Second Amendment—which codified a preexisting right to carry—covers conduct that the challenged law restricts, the majority essentially directs courts to start by simply asking whether a gun owner cannot do what she wants with her firearm. *Ante*, at 201–202. The majority thereby eliminates step one's effectiveness as a means of identifying gun-related laws that impinge on rights secured by the Second Amendment. This move represents a significant expansion that, as applied here, obscures what *Bruen*'s actual step-one analysis reveals: This case is about property rights, not gun rights.

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A

"'[O]ur law holds the property of every man so sacred, that no man can set his foot upon his neighbour's close without his leave.'" *Florida* v. *Jardines*, 569 U. S. 1, 8 (2013) (quoting *Entick* v. *Carrington*, 2 Wils. K. B. 275, 291, 95 Eng. Rep. 807, 817 (K. B. 1765)). This principle, called the right to exclude, is the "*sine qua non*" of property. *Cedar Point Nursery* v. *Hassid*, 594 U. S. 139, 150 (2021) (internal quotation marks omitted). It is "one of the most essential sticks in the bundle of rights that are commonly characterized as property" and is "universally held to be a fundamental element of the property right." *Kaiser Aetna* v. *United States*, 444 U. S. 164, 176, 179–180 (1979).

Stated simply, the right to exclude means that members of the public may not enter privately owned property with-

out the consent of the owner. To do so would be a trespass. 4 M. Wolf, Powell on Real Property § 34.25, p. 34–222 (2026) (Powell on Property); see *ante*, at 199. Consent to enter property is often referred to as a "license." Powell on Property § 34.25, at 34–220. And a license is a *privilege*, revocable at the will of the property owner. 8 D. Thomas, Thompson on Real Property § 64.03 (2016); Powell on Property § 34.25, at 34–223 ("A license is revocable by any manifestation of the licensor's intent to end it").

The consent establishing a license to enter someone else's property can be explicit or implicit. *Id.*, at 34–220. The form of consent typically depends on the nature of the private property at issue. In many places, private property owners welcome visitors (think shops, gas stations, and the like). Thus, as the majority notes, the public generally enjoys an implied license to enter this sort of property—that is, private property open to the public. *Ante*, at 199. The operation of the implied license in this context means that the public can enter such property without seeking the owner's affirmative consent; such entry is not considered a trespass. *Ibid.*; Powell on Property § 34.25, at 34–222. Of course, the owner retains the option to revoke that implied license in whole or in part, even when operating private property open to the public. *Id.*, at 34–221.[3]

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The scope of any license to enter can vary in ways that are relevant here. First, as courts have traditionally recognized, local custom can provide a baseline. Consider, for instance, *McKee* v. *Gratz*, 260 U. S. 127 (1922), a case involving button makers who had entered the plaintiff's private land in search of mussel shells, *id.*, at 134. In many places, that entry might have been a trespass—"[t]he strict rule of the

[3] Dogs in restaurants provide one modern example. In the absence of a regulation saying that dogs are not permitted in restaurants, the implied license for a human customer to enter a restaurant might extend to a pet, or it might not. But either way, a property owner has the option to put up a "No Dogs Allowed" sign to make clear that dogs are not welcome. See Brief for City of Baltimore et al. as *Amici Curiae* 16.

English common law" required affirmative consent before entry. *Id.*, at 136. But in Missouri, where the mussel hunting took place, "[t]here was evidence that the practice" of permitting people to enter private lands to hunt "had prevailed." *Ibid.* And that local custom mattered: The Court explained that the English common law "must be taken to be mitigated" by "the practice [that] had prevailed in [the] region" where the suit originated. *Ibid.* In other words, there was evidence that local custom had developed such that the mussel hunters might have had an implied license to enter the land. The rules governing licenses to enter, therefore, are not universal. Rather, "'[a] license may be implied from the habits'" of a particular location. *Jardines*, 569 U. S., at 8 (quoting *McKee*, 260 U. S., at 136).

Second, because States have the power to set default consent rules, state law can alter the scope of a license to enter private property. For example, the English rule was that the public had to obtain the owner's express permission to hunt or fish on "unenclosed" private property. M. Brady, Property v. Guns: The Level-of-Generality Problem in *Wolford*, 78 Stan. L. Rev. Online 156, 165 (2026). But some States altered this rule via positive law. See, *e. g.*, Pa. Const., § 43 (1776) ("[I]nhabitants of this state shall have liberty to fowl and hunt . . . on all . . . lands . . . not inclosed"); Vt. Const., ch. 2, § 39 (1777) (similar). Others retained it or variations on it. See Act of Aug. 23, 1769, 1790 S. C. Pub. L. § 3, 276 (prohibiting hunting without license if more than seven miles from home).

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In all events, uniformity with respect to the scope of licenses to enter private property was never thought necessary or even desirable. Instead, local inhabitants molded licenses to fit local needs, both by custom and by positive law.

B

All this makes clear that Hawaii's law does not restrict the right to carry a gun at all. Instead, its law vindicates its resident's property rights by operating on the scope of the

implied license to enter. And it does so by requiring gun owners to seek express consent, rather than assume implied consent. See § 134–9.5(b). Consequently, Hawaii's law simply does not implicate the Second Amendment, as *Bruen*'s first step requires.

Bruen instructs that courts must start by asking whether "the Second Amendment's plain text covers an individual's conduct." 597 U. S., at 24. But "[l]ike most rights, the right secured by the Second Amendment is not unlimited." *District of Columbia* v. *Heller*, 554 U. S. 570, 626 (2008). The Second Amendment "codified a pre-existing right, and pre-existing limits on that right are part and parcel of it." *United States* v. *Rahimi*, 602 U. S. 680, 737 (2024) (BARRETT, J., concurring). So, at *Bruen*'s first step, courts must determine whether the activity asserted is part of this pre-existing right.

Here, those pre-existing limits doom petitioners' case. Petitioners wish to carry guns onto private property without seeking express consent. See Brief for Petitioners 24 (arguing that the Second Amendment allows them to "carr[y] firearms on private property open to the public without first getting express permission from the proprietor"). Yet everyone agrees that consent is a precondition to exercising any right to carry on private property.[4] That concession gives the game away: Section 134–9.5 does not burden petitioners' rights under the Second Amendment because there is no right to carry a gun onto private property without the permission of the owner. The right to exclude is a long-

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[4] Both petitioners and the United States, as *amicus curiae*, acknowledge this crucial point. See Brief for Petitioners 17 ("To be sure, a private property owner has the unquestioned right to exclude others, including those bearing arms. Petitioners have no quarrel with that principle" (internal quotation marks and citation omitted)); Brief for United States as *Amicus Curiae* 26 ("[A]n owner may revoke [any] license" to enter private property with guns).

recognized (and presently accepted) limitation on "the pre-existing right" to carry.

To be sure, the public might well have an implied license to enter private property open to the public, and such permission might generally include the ability to enter armed. See *ante*, at 199. But as I have explained, any such license is not a matter of right—a license is a creature of state law and custom, and it can vary accordingly. See *supra*, at 232–233. Unsurprisingly, then, there are multiple historical examples of States altering the scope of implied licenses through legislation. Under the common law of England, there was no implied license for a person's livestock to enter another person's unfenced land. But the Colonies reversed that rule through legislation, requiring landowners to fence out roaming livestock that they did not want on their property. See B. Sawers, The Right To Exclude From Unimproved Land, 83 Temp. L. Rev. 665, 679–684 (2011).

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And it's not just livestock. States have also historically altered the scope of implied licenses *to carry firearms* onto private property—the subject of today's case. During the founding and Reconstruction eras, multiple States passed laws that operated on the interaction between armed carry and the right to exclude. These laws, like Hawaii's, required affirmative consent for armed entry onto private property. See Act of Dec. 21, 1771, § 1, Laws of the State of New-Jersey 26 (1821) (1771 N. J. Laws) (barring visitors from "carry[ing] any gun on any lands not his own, and for which the owner pays taxes, or is in his lawful possession, unless he hath license or permission in writing from the owner"); 1721 Pa. Laws, ch. 246, § 3, in 3 The Statutes at Large of Pennsylvania From 1682 to 1801, pp. 254–255 (J. Mitchell & H. Flanders eds. 1896) (1721 Pa. Acts) (making it unlawful for a person to "carry any gun or hunt on the improved or inclosed lands of any plantation other than his own, unless he have license or permission from the owner"); Act of Dec. 20, 1865, No. 10, § 1, 1865 La. Acts 14 (1865 La. Acts) ("[I]t shall not be lawful

for any person or persons to carry fire-arms on the premises or plantations of any citizen, without the consent of the owner or proprietor"); Act of Nov. 6, 1866, 2 Tex. Laws 1321 (G. Paschal ed., 4th ed. 1874) (1866 Tex. Laws) (similar).

Thus, at presumably relevant historical time periods, it was commonly understood that the right enshrined in the Second Amendment yields to property rights where private property is concerned.[5] Entry was, in the first instance, subject to the right to exclude. And because state law and custom set the bounds of the right to exclude, the scope of one's ability to carry firearms onto private property open to the public, and the form of the consent required, were likewise changeable by custom or state law.

This was the backdrop against which the Second Amendment came into being (and which the Fourteenth Amendment incorporated); the right it enshrined did not protect an unyielding liberty to carry a gun onto private property via implied consent. In other words, the conduct here—carrying a gun onto private property without securing the property owner's express consent—is not part of the pre-existing right protected by the Second Amendment.

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Conceptualizing Hawaii's law as "flipping the default," *ante*, at 199, misses the point: *State law* supplies the default. Yes, the historical custom in most States set the consent rule to be implicit in most circumstances. But that custom was by no means universal—as I have explained, some States decided that consent to carry firearms onto private property must be explicit. And in every instance, the States retained the power to determine whether the required consent could

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[5] The Court has declined to decide the relevance of Reconstruction-era laws to the *Bruen* inquiry. See *United States* v. *Hemani*, 608 U. S. 772, 783, n. 3 (2026) (citing *Bruen*, 597 U. S., at 37–38). I find no need to answer that open question now because, in this case, I view both the founding-era and Reconstruction-era laws as pointing in the same direction: toward upholding Hawaii's law as consistent with the Second Amendment.

be implied or had to be explicit. See *Barnhill* v. *Johnson*, 503 U. S. 393, 398 (1992) ("In the absence of any controlling federal law, 'property' and 'interests in property' are creatures of state law" (citing *McKenzie* v. *Irving Trust Co.*, 323 U. S. 365, 370 (1945))); *Phillips Petroleum Co.* v. *Mississippi*, 484 U. S. 469, 484 (1988) (noting the "general proposition [that] the law of real property is, under our Constitution, left to the individual States to develop and administer" (internal quotation marks omitted; alteration in original)).

Recognizing state autonomy in this respect is especially appropriate here, since Hawaii has *never* had a custom of armed carry. *Wilson*, 154 Haw., at 27, 543 P. 3d, at 459. In this way, Hawaii's use of its prerogative to protect the interests of its residents is consistent with its own traditions. Although the relevant principle—that the State can choose whether an implied license exists—applies nationwide, Hawaii's footing is especially strong because it has *always* effectively set its default rule in the same direction: In the absence of the widespread availability of guns, those who sought to carry guns onto private property open to the public in Hawaii never had an implied license to do so. Section 134–9.5 merely codified that existing norm.

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The majority chastises Hawaii for seeming to argue that the meaning of the Second Amendment should change State-to-State. *Ante*, at 205–207. But the majority misunderstands Hawaii's argument. The *meaning* of the Second Amendment does not vary by location. Its meaning remains fixed: The right to carry firearms onto private property is subject to consent. It is the form of that consent that may vary by custom or state law.[6]

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[6] This is not abnormal. When federal constitutional law is applied to the States, there are times when choices about state law may cause it to appear that "constitutional protections . . . vary based on how each State has chosen to" legislate. *Lange* v. *California*, 594 U. S. 295, 332 (2021) (ROBERTS, C. J., joined by ALITO, J., concurring in judgment). But in such circumstances, what differs is the application; the

The majority's contrary conclusion means that, despite yielding to property law when it comes to the *fact* of consent, the Second Amendment dictates its *form*. That disconnect is both puzzling and unfounded. The form of consent is simply not of constitutional dimension.

C

Rather than respond to Hawaii's evidence that the right to exclude resolves this case at the first step of *Bruen*, the majority moves the goal posts. It announces that, at step one, courts must look *only* to the "plain text" of the Second Amendment devoid of any historical understanding. *Ante*, at 195, 201–202. And it rejects Hawaii's attempts to clarify the meaning of the plain text as it relates to the relevant conduct: carrying a firearm onto private property without express consent. History, according to the majority, is "out of place at *Bruen*'s first step." *Ante*, at 205. Instead, the majority seeks to confine history to *Bruen*'s second step—when the government must identify a history and tradition that relevantly limits the scope of the Second Amendment right. *Ante*, at 196–197; see 597 U. S., at 19. This shift is surprising, not only as a matter of precedent but also in light of the majority's chosen methodology.

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First of all, step one of *Bruen* is supposed to be an interpretive exercise focused on the text of the Constitution. 597 U. S., at 17. As such, our cases *require* that history play a role. True, *Bruen* holds for step-one purposes that "when the Second Amendment's plain text covers an individual's conduct, the Constitution presumptively protects that conduct." *Ibid.* But its analysis demonstrates that "plain text" means text supported by historical understanding.

Specifically, *Bruen* relied heavily on *Heller*, which "demand[ed] a test rooted in the Second Amendment's text, *as*

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meaning of the constitutional provision itself does not vary by location. See, *e. g.*, *id.*, at 303–308, 314 (defining the scope of an exception to the Fourth Amendment's warrant requirement).

informed by history." 597 U. S., at 19 (emphasis added).[7] According to *Bruen*, *Heller* had "relied on text *and history*" for "defining the character of the right . . . , suggesting the outer limits of the right, [*and*] assessing the constitutionality of a particular regulation." *Bruen*, 597 U. S., at 22 (emphasis added). This characterization of *Heller* made sense, as the main point of *Heller*'s analysis was to explain that the text of the Second Amendment codified a pre-existing right. 554 U. S., at 592. History, then, was necessary for interpreting the text.

Bruen then derived its first step from the "test . . . set forth in *Heller*." 597 U. S., at 26. *Heller* indicated that it is appropriate to consider history in ascertaining the scope of the Second Amendment right—what *Bruen* later adopted as step one. 554 U. S., at 592. And step one is supposed to have a function: It operates as a check to make sure that Second Amendment challengers demonstrate that the Amendment actually implicates their desired conduct. *Bruen*, 597 U. S., at 32 (analyzing whether the "plain text of the Second Amendment protects [the] proposed course of conduct"). In so doing, *Bruen*'s first step requires "defining the character of the right," which, again, *Heller* instructs involves consideration of history. *Bruen*, 597 U. S., at 22.

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Although *Bruen* did not conduct a historical analysis itself, that was because *Bruen*'s step-one "plain text" determination was obvious after *Heller*. In other words, the interpre-

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[7] *Bruen*'s many citations to *Heller* support this reading. When *Heller* "turn[ed] first to the meaning of the Second Amendment," 554 U. S., at 576, it looked to history. See *Bruen*, 597 U. S., at 20 ("In *Heller*, we began with a 'textual analysis' focused on the 'normal and ordinary' meaning of the Second Amendment's language," and, "[f]rom there, we assessed whether our initial conclusion was 'confirmed by the historical background of the Second Amendment'" (quoting *Heller*, 554 U. S., at 576, 578, 592)). History mattered for interpreting the plain text of the Second Amendment because "'it has always been widely understood that the Second Amendment . . . codified a *pre-existing* right.'" *Bruen*, 597 U. S., at 20 (quoting *Heller*, 554 U. S., at 592).

tive question the *Bruen* Court was asked to answer required no interpretation of the text of the Amendment beyond what *Heller* had done. 597 U. S., at 32. *Heller* had already reviewed the historical record and had essentially concluded that the proposed course of conduct at issue in *Bruen*—"carrying handguns publicly for self-defense"—was covered by the text of the Second Amendment. *Bruen*, 597 U. S., at 32 (citing *Heller*, 554 U. S., at 592). Indeed, the parties in *Bruen* did not dispute this point. 597 U. S., at 33.

Here, the parties do not agree about the meaning of the Second Amendment, nor have our past cases established the meaning of the Second Amendment applicable to petitioners' proposed conduct—namely, "carrying firearms on private property open to the public without first getting express permission from the proprietor." Brief for Petitioners 24. So today's step-one question is whether the Second Amendment protects armed carry onto private property open to the public without express consent. And that inquiry demands additional interpretation of the pre-existing limits baked into the Second Amendment. See *Heller*, 554 U. S., at 576–578, 592–595.[8]

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[8] JUSTICE BARRETT thinks otherwise. She asserts that the only role of history at step one is to "elucidat[e] how contemporaries understood the text—for example, the meaning of the phrase 'bear Arms.'" *Ante*, at 213 (concurring opinion) (quoting *United States* v. *Rahimi*, 602 U. S. 680, 738–739 (2024) (BARRETT, J., concurring)). And she insists that my reasoning both misunderstands the *Bruen* inquiry and would lead to the disruption of other constitutional rights. *Ante*, at 213–217 (BARRETT, J., concurring). But this Court has said repeatedly that the Second Amendment in particular enshrined a *pre-existing* right. *Bruen*, 597 U. S., at 20 (citing *Heller*, 554 U. S., at 592); see also *Rahimi*, 602 U. S., at 737 (BARRETT, J., concurring). So, understanding any pre-existing limits on that right as codified by the Amendment's text *is* an interpretive inquiry. Cf. L. Solum, Originalism and Constitutional Construction, 82 Ford. L. Rev. 453, 457 (2013) (noting the distinction in originalist theory between interpreting the words of the Constitution and construing those words to decide a legal question).

Our past cases do not answer the question of how the right to exclude—which the Framers were aware of—interacted with the Second Amend-

Thus, under *Bruen* and *Heller*, the Court must consult the historical record to determine whether the plain text of the Second Amendment was originally understood to guarantee armed carry onto private property with presumed implied consent as the default, impervious to state regulation altering the form of that consent—*i. e.*, the constitutional right petitioners claim. For the reasons I have already explained in Part II–B, *supra*, history clearly demonstrates that the Second Amendment has never been understood to protect such conduct.

The Court's sudden aversion to consulting history to inform the scope of the Second Amendment right at *Bruen*'s step one is strange, to say the least. Several Members of the majority have elsewhere opined that interpreting the Second Amendment requires understanding the original meaning of its text.[9] Yet the majority's newfound under-

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ment's pre-existing right to carry. History is needed to "elucidat[e]" (*ante*, at 213 (BARRETT, J., concurring) (internal quotation marks omitted)) whether the Second Amendment protects the ability to presume implied consent to carry firearms onto private property. *Bruen*'s second step, by contrast, uses history to address a different question: whether, if the modern regulation does impinge upon the constitutionally protected right to carry firearms, that challenged law "is consistent with the Nation's historical tradition of firearm regulation." 597 U. S., at 24.

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[9] See *Rahimi*, 602 U. S., at 737 (BARRETT, J., concurring) ("Because the Court has taken an originalist approach to the Second Amendment, it is worth pausing to identify the basic premises of originalism. The theory is built on two core principles: that the meaning of constitutional text is fixed at the time of its ratification and that the discoverable historical meaning has legal significance and is authoritative in most circumstances" (internal quotation marks and alteration omitted)); *id.*, at 716 (KAVANAUGH, J., concurring) ("Read literally, those Amendments might seem to grant *absolute* protection, meaning that the government could never regulate speech or guns in any way. But American law has long recognized, as a matter of original understanding and original meaning, that constitutional rights generally come with exceptions"); *id.*, at 711 (GORSUCH, J., concurring) ("Discerning what the original meaning of the Constitution requires in this or that case may sometimes be difficult. Asking that question, however, at least keeps judges in their proper lane, seeking to honor the supreme law the people have ordained rather than substituting

standing of the first step of *Bruen* obliterates any need for reference back to original meaning. All that step one now requires is a 21st-century judge to read the text of the Second Amendment and ask herself what she thinks the words mean. *Ante*, at 201–202. If she decides that the words cover the conduct before her (perhaps by conjuring up lengthy hypotheticals chronicling imagined indignities, *e. g.*, *ante*, at 202–204), then the conduct is presumptively protected by the Second Amendment. Forget about "keep[ing] judges in their proper lane" by "[d]iscerning . . . the original meaning of the Constitution." *Rahimi*, 602 U. S., at 711 (GORSUCH, J., concurring). Judges are now free to insert any meaning they desire into the text of the Second Amendment and then demand the government provide analogues to fit that interpretation. In light of the methodological choice to rely on originalism, however, it should be insufficient to simply point to the text and say that the Second Amendment covers any firearm-related conduct. *Ante*, at 201–205.[10]

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Worse, the majority's new methodology is a one-way ratchet: It inevitably works only to the benefit of armed carry by removing any real burden of proof on gun owners at

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our will for theirs"); cf. *McDonald* v. *Chicago*, 561 U. S. 742, 828 (2010) (THOMAS, J., concurring in part and concurring in judgment) ("When interpreting constitutional text, the goal is to discern the most likely public understanding of a particular provision at the time it was adopted").

[10] This is not to say that more originalism is the antidote to an unconstrained Judiciary. I am doubtful that originalism can be done right in any event because it is too easy for judges to selectively oversimplify the past, either when choosing examples or when drawing inferences from the historical record. Indeed, a "flawed" "historical account" is what started the doctrinal mess we find ourselves in today. See *McDonald*, 561 U. S., at 914 (Breyer, J., dissenting) (suggesting that *Heller* was wrongly decided in part based on poorly conceived historical analysis). The plot now thickens, for even selectivity when reviewing the historical record cannot get the majority to its desired result at step one. So the majority jettisons history here, confining its use to step two and freeing courts from the constraints that even an oversimplified understanding of the history might provide when interpreting the "plain text" of the Second Amendment.

step one. The majority simply equates the *ability* to carry a gun with the *right* to carry anywhere and everywhere. *Ante*, at 202. Because of that, it then assumes that any impediment to carrying qualifies as a burden on the right. *Ante*, at 202, 204. The upshot of the majority's view of *Bruen*'s first step is thus that any law that regulates the carrying of firearms is presumptively unconstitutional. But under this Court's precedents, assessing whether conduct falls within the right protected by the Second Amendment requires more than breezily asserting that the restricted conduct involves carrying a firearm.

Ultimately, the majority spills much ink arguing that the *Bruen* test is "disciplined" but, conveniently, "not mechanical." *Ante*, at 197. As it turns out, "not mechanical" is a gross understatement. *Bruen* becomes boundless once the majority abandons its chosen methodology, and the Court ends up with a more protective Second Amendment than the Framers understood themselves to be adopting. If originalist principles and our Second Amendment case law were consistently applied, however, there would be little doubt that Hawaii prevails at step one. The Second Amendment's plain text, informed by history, simply does not protect a right to go armed onto private property without the property owner's express consent.[11]

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III

Even if the majority were correct about how step one cashes out, Hawaii has carried the step-two burden of showing

[11] The majority maintains that this framing is incorrect "because States may not adopt property-law rules that violate constitutional rights." *Ante*, at 206–207, n. 13. I agree, of course, that States cannot alter constitutional rights. But today's dispute is not a matter of *Hawaii* altering the Constitution. Rather, the scope of the right to carry per the Second Amendment is and always has been limited by property interests (the right to exclude). *Heller* was crystal clear that the Second Amendment adopted a pre-existing right, 554 U. S., at 592, and that right was limited by a similarly pre-existing, well-established, and currently accepted property right—not the other way around.

that its regulation is consistent with this Nation's historical tradition of firearm regulation. *Bruen*, 597 U. S., at 24. *Bruen*'s second step requires courts to "ascertain whether the new law is 'relevantly similar' to laws that our tradition is understood to permit." *Rahimi*, 602 U. S., at 692 (quoting *Bruen*, 597 U. S., at 29). "Why and how the regulation burdens the right are central to this inquiry." *Rahimi*, 602 U. S., at 692. There is no requirement that a State produce a "'dead ringer'" or a "'historical twin.'" *Ibid.* (quoting *Bruen*, 597 U. S., at 30). Instead, "'the appropriate analysis involves considering whether the challenged regulation is consistent with the *principles* that underpin our regulatory tradition.'" *United States* v. *Hemani*, 608 U. S. 772, 780 (2026) (quoting *Rahimi*, 602 U. S., at 692; emphasis added).

The analogues cited by Hawaii clearly establish that legislatures historically required affirmative consent for carrying a firearm onto private property—the same "how" as § 134–9.5. And they did so to protect property owners' interests in response to concerns related to unauthorized armed entry—the same "why" as § 134–9.5.

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A

Hawaii cites a combination of founding-era and Reconstruction-era laws. From those analogues, a principle plainly emerges: States routinely required affirmative consent for armed carry onto private property to vindicate the rights of property owners, including the right to exclude, and to prevent real-world harms arising from unauthorized armed carry.

To start, the "how" maps on perfectly to Hawaii's law: Hawaii's historical analogues operated by requiring those wishing to carry a gun onto private property to get express consent from the owner. For example, a 1771 New Jersey law provided that a person could not "carry any gun on any lands not his own, and for which the owner pays taxes, or is

in his lawful possession, unless he *hath license or permission in writing from the owner or owners*, or legal possessor." 1771 N. J. Laws 26 (emphasis added). And New Jersey was not alone in requiring express consent: Multiple other States likewise required affirmative consent before visitors could carry firearms onto the private property of another, both at the time of the founding and during Reconstruction. See, *e.g.*, 1721 Pa. Acts, § 3, at 255 (requiring "license or permission from the owner" to "carry any gun or hunt on the improved or inclosed lands of any plantation other than his own"); Act of Dec. 20, 1763, ch. 1233, § 1, in 1 Laws of New-York, from the Year 1691, to 1773 inclusive, p. 442 (1774) (1763 NY Act) (criminalizing "carry[ing] . . . any Musket, Fowling-Piece, or other Fire-Arm whatsoever, into, upon, or through" certain enclosed lands "without Licence in Writing"); 1865 La. Acts, No. 10, § 1, at 14 ("[I]t shall not be lawful for any person or persons to carry fire-arms on the premises or plantations of any citizen, without the consent of the owner or proprietor"); 1866 Tex. Laws 1321, § 1 (same); Act of Jan. 15, 1866, 1865 Fla. Acts and Resolutions § 19, p. 27 (1865 Fla. Acts) (making it unlawful "for any person to hunt or range with a gun within the enclosed land or premises of another without the permission of the owner").

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Some of those laws did not extend to all private property in the State. But a significant number applied to the type of property at issue here: private property open to the public. The New Jersey law, for example, applied to "any lands not [the trespasser's] own, and for which the owner pays taxes, or is in his lawful possession." 1771 N. J. Laws 26. That would necessarily have encompassed private property open to the public, including the type of locations to which Hawaii's law applies. See Decl. of H. Hartog ¶¶ 32, 34 in *Koons* v. *Platkin*, No. 1:22–cv–7464 (D NJ, Feb. 13, 2023), ECF No. 84 (noting that New Jersey's law would have applied to "all varieties of real property, including the typical

'businesses' of the times": "taverns, leathersmiths and blacksmiths, pharmacies, seed stores, and merchants who bought and sold livestock").

Even laws that do not appear on their face to apply to private property open to the public are, after some inquiry, akin to Hawaii's regulation. Pennsylvania's law applied to "the improved or inclosed lands of any plantation other than [the trespasser's] own." 1721 Pa. Acts, § 3, at 255. And several Reconstruction-era laws applied to "the premises or plantations of any citizen." 1865 La. Acts, No. 10, § 1, at 14; see 1866 Tex. Laws 1321, § 1; 1865 Fla. Acts, § 19, at 27. As Hawaii explains, "improv'd or inclosed Lands" and "premises or plantations" exempted undeveloped and unfenced land but still included much of the private property open to the public. Brief for Respondent 31, 33–35 (internal quotation marks omitted); see also Brief for Professors of Property Law as *Amici Curiae* 26.

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As for the "why": These historical analogues were intended to vindicate property rights and to address a range of concerns associated with violations of those rights by armed individuals on private land. The laws protected property owners' right to exclude by requiring that visitors seek "license or permission" before they were permitted to carry a gun onto private property. 1771 N. J. Laws 26; 1721 Pa. Acts, § 3, at 255. And even an anti-poaching focus aimed to protect property rights by preserving the game on the property for the owner or the owner's licensees. See Brady, 78 Stan. L. Rev. Online, at 165.

Beyond property rights, the broader animating regulatory principles included limiting armed trespass, property theft or damage, and gun violence, whether intentional or accidental. See 1721 Pa. Acts, § 3 (preamble), at 255 (targeting "divers[e] abuses, damages and inconveniencies" related to unauthorized armed carry, *i. e.*, "*carrying guns* and presuming to hunt on other people's lands" (emphasis added)); 1722 N. J. Laws 101 (similar). For example, the colony of New York,

which in 1763 passed a law applying to "Orchard[s], Garden[s], Corn-Field[s], or other inclosed Land whatsoever," found that the unauthorized carrying of firearms was leading to a number of issues, including creating "great Danger of the Lives of his Majesty's Subjects, the Ruin and Destruction of the most valuable Improvements, the grievous Injury of the Proprietors, and the great Discouragement of their Industry." 1763 NY Act 441–442.

New York had reason to be concerned. Historically, poaching was dangerous to people and property. Stray gunshots injured and even killed people. See Brady, 78 Stan. L. Rev. Online, at 167–168. And poachers were known for "strik[ing] back with deadly force when cornered." T. Lund, American Wildlife Law 30 (1980). Not only was poaching dangerous to bystanders and property owners, but the tactics used by hunters—including creating fires and leaving carcasses to rot—caused property damage. *Id.*, at 32. In the face of such threats and given the difficulty of policing poaching, historical legislatures likely used all the tools they could muster to decrease the harms related to poaching and reasonably decided that property owners should at least be on notice before accepting the risk of these harms.

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These historical analogues suffice to demonstrate a tradition of state regulation within which Hawaii's law fits comfortably. Like Hawaii's, these laws required consent for armed entry onto private property open to the public. And like Hawaii's, they did so to protect property owners' rights and to prevent the harms that generally accompanied unauthorized armed entry onto private land.

B

At step two, the majority again misapprehends this Court's precedents. It observes that many of the analogues discuss unauthorized hunting—and goes no further, essentially requiring a "dead ringer" for Hawaii's law. *Ante*, at 208–211. But *Rahimi* demands more effort. The lack of an

exact match cannot be dispositive; instead, the majority should have searched for the animating principles in Hawaii's analogues. 602 U. S., at 691.[12] The majority's arguments for why Hawaii's analogues are insufficient do not follow from *Rahimi*'s reasoning.

First, the majority insists that the "why" is different because the historical laws targeted poaching. In the majority's view, the "obvious aim" of Hawaii's founding-era analogues "was to prevent the distinctive harms and risks associated with unauthorized hunting." *Ante*, at 208; see *ante*, at 210 (noting further that the laws targeted conduct that "entailed the theft of private property" and "the firing of guns").

But to set the principle of Hawaii's analogues at "poaching" is to demand a historical twin insofar as it requires the modern legislature to target an identical problem as legislatures in the past. Such a narrow search results in a "law trapped in amber." *Rahimi*, 602 U. S., at 691. Seen at the correct level of generality, however—*i. e.*, one that does not put the modern legislature into a "regulatory straightjacket," *Bruen*, 597 U. S., at 30—historical laws targeting poaching are also appropriately viewed as being aimed at protecting the property rights of landowners from the harms of unauthorized armed carry on their property. Hawaii's law does the same.

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[12] What do I mean by "principles"? The majority assesses the analogues at the lowest level of generality: It looks to their texts and determines that these laws were targeted at hunting. But *Rahimi* instructs that the relevant "why" is not necessarily the "why" that is immediately apparent on the face of the law; the analogue need not be a "precis[e] match." 602 U. S., at 692. Looking for a principle requires searching for whether the analogues were instituted "for similar reasons." *Ibid.* That often requires going up a level of generality to understand the broader problem that a legislature chose to attack. In other words, " '[a]nalogical reasoning' under *Bruen* demands a wider lens: Historical regulations reveal a principle, not a mold." *Id.*, at 740 (BARRETT, J., concurring).

The majority is likewise mistaken in maintaining that Hawaii's law is not "relevantly similar" to its proffered analogues because Hawaii does not restrict conduct that produces effects similar to poaching. *Ante*, at 210 (internal quotation marks omitted). It asserts—without evidence—that this is true because "[o]thers on the premises will not even notice a person peacefully carrying a concealed weapon in the manner demanded by Hawaiian law." *Ibid.* That is sheer speculation. It also misses the point. The step-two question is not whether the most anodyne version of the conduct that the modern law targets would produce the same effects as the harms highlighted in the historical laws. Rather, we ask whether the analogues and the modern law target "'relevantly similar'" issues. *Rahimi*, 602 U. S., at 692. Here the answer is clearly yes: Both the analogues and § 134–9.5 aim to fortify landowners' right to exclude and protect their interests from the effects of unauthorized armed carry on their private property.

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What is more, these historical analogues obviously had purposes beyond poaching. For example, New Jersey first enacted in 1722, and then repeatedly reenacted, a law that banned "trespassing with guns" along with a prohibition on "presum[ing] . . . to hunt . . . on any lands not [the trespasser's] own." 1771 N. J. Laws 26, 29; 1722 N. J. Laws 101. In other words, regulating hunting was only one of the law's objectives. Several Reconstruction-era laws more generally "prohibit[ed] the carrying of fire-arms," without any mention of game. 1865 La. Acts, No. 10; see also 1866 Tex. Laws 1321, § 1 (same). And even for those laws that did not so clearly apply beyond hunting, the "why" was nevertheless broader than harms directly related to poaching. Such laws barred unauthorized possession on "enclosed land or premises of another" (which, as I note above, included businesses), so their "why" encompassed more than stopping the taking of game or destruction of property. See, *e. g.*, 1865 Fla.

Acts, § 19, at 27. It would be odd for a statute that sought only to prevent poaching to include businesses.

The majority also rejects Hawaii's analogues based on the contention that the "coverage" of the historical laws "differed sharply from that of the Hawaii law now before us." *Ante*, at 210. The analogues, the majority says, applied only "where game could be found." *Ibid.* But as I have already explained, several of the historical laws applied to "premises," so they covered more than merely those places where wild animals roamed.

In the end, the majority simply refuses to acknowledge that the principles underlying these historical regulations are indistinguishable from the principles underlying Hawaii's. But there is a long historical tradition of States requiring those wishing to carry firearms onto private property to seek the express permission of the property owner and doing so for similar reasons as Hawaii. And if judges may nonetheless reject this lengthy track record because the risks from unauthorized carry were primarily related to *hunting* in the 18th and 19th centuries—as the majority does—no one can seriously claim that the *Bruen* test actually constrains judicial discretion.

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To the contrary, the majority's analysis demonstrates that, under *Bruen*, a judge can always choose to invalidate a modern regulation, so long as the judge points to some distinction between the modern regulation and the historical examples (really, *any* difference at all, no matter how small or irrelevant). Judges still have plenty of discretion left to exercise. And the unfortunate reality is that, regardless of the historical record, the will of the State's legislature, or the needs of the local community, *Bruen*'s historical inquiry almost always "cabins" judicial discretion in only one direction: stymieing legislative efforts to restrict guns.[13]

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[13] Like the majority, JUSTICE BARRETT concludes that Hawaii's law is not "relevantly similar" to the historical analogues Hawaii proffers. *Ante*, at 220–225 (concurring opinion). But, as my discussion shows, whether

C

Finally, a note regarding the majority's step-two discussion of Hawaii's effort to use a Black Code (namely, Louisiana's 1865 law) as a historical analogue. The majority says that the idea of such a law contributing to "the original understanding of the right to keep and bear arms cannot be taken seriously" "[u]nless we put history entirely out of our minds." *Ante*, at 212. By "history" it presumably means America's long and tortured past of racial discrimination and violence. But this reasoning provides yet another example of the majority straying from its supposedly disciplined test.

The Black Codes were a series of "harsh and restrictive" laws that Southern legislatures enacted in the wake of the Civil War to control former slaves. D. Nieman, To Set the Law in Motion: The Freedmen's Bureau and the Legal Rights of Blacks, 1865–1868, p. 72 (1979). These laws were a "legal means of subordinating" the newly freed Black population. E. Foner, Reconstruction: America's Unfinished Revolution, 1863–1877, p. 198 (1988). The Black Codes impacted nearly every aspect of life for freedmen in the South "[v]irtually from the moment the Civil War ended." *Id.*, at

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historical laws are "relevantly similar" to modern ones depends on how the laws are characterized—which the Court controls. For example, JUSTICE BARRETT ignores what Hawaii says about the "why" of its own law: that its aim was to "respec[t] the right of private individuals and entities to choose for themselves whether to allow or restrict the carrying of firearms on their property." 2023 Haw. Sess. Laws 114. Instead, she assigns to Hawaii a *different* "why." *Ante*, at 216, 220–221 (asserting that Hawaii enacted its law to keep people from carrying guns in spaces open to the public). JUSTICE BARRETT further reasons that *that* "why" is not sufficiently similar to the historical analogues because the founding-era laws had another purpose. *Ante*, at 220–221 (maintaining that the historical laws were aimed at preventing the "particular abuse of firearms" related to poaching in "specific places"). But, of course, if *Bruen* allows reviewing courts to reject the "why" proffered by the modern legislature (as it apparently does), then its test becomes a shell game. Courts can always find a different way to frame the founding-era laws—or the modern one—so that the contested regulation can never meet the mark.

198–203. As relevant here, this included whether freedmen could carry firearms. *Id.*, at 203–204. Indeed, as my colleagues have previously explained, laws that restricted the ownership and possession of guns as part of the Black Codes made life dangerous for millions of Black people in the South for over a century. See *McDonald* v. *Chicago*, 561 U. S. 742, 846–850 (2010) (THOMAS, J., concurring in part and concurring in judgment) (discussing the impact of the Black Codes on freed Blacks); see also *id.*, at 770–778.

Given the Court's commitment to elevating the history and tradition of firearm use and regulation when deciding Second Amendment challenges, the idea that courts must categorically exclude historical laws that restricted Black people from possessing firearms (not unlike the categorical exclusion of the people who were historically bound by those laws) warrants further scrutiny.

As I see it, there are two potential reasons to use—or exclude—the Black Codes in *Bruen*'s history-and-tradition test. First, it could be that the Black Codes regulated guns consistent with the Second Amendment but States chose to exercise their regulatory authority in a discriminatory fashion. See I. Bartrum, Structural Originalism: A Second Amendment Case Study, 27 U. Pa. J. Const. L. 846, 902–907 (2025) (explaining that the Black Codes were understood to be a discriminatory application of permissible regulations on the right to armed self-defense). Under this framing, those gun regulations are not examples of an unconstitutional abridgment of the right to bear arms, but rather exemplify a violation of a different constitutional Amendment—the Fourteenth. Alternatively, it could be that States did *not* have the constitutional authority under the Second Amendment to enact such regulations but did so anyway for discriminatory reasons. Under that framing, not only did the States violate the Constitution by acting on the basis of race; they *also* violated the right to bear arms.

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Only the second set of circumstances justifies removing these laws (and the experiences of those they targeted) from the body of evidence that determines the historical reach of the Second Amendment under *Bruen*.[14] So, it might well be that the Black Codes are invalid inputs for *Bruen*'s test, but only if they violated the Second Amendment—which may or may not be the case.[15]

The Court bypasses any meaningful analysis of whether Louisiana's law comported with, or abridged, historical understandings of the right to carry (as opposed to the right to carry *equally*). Instead, it cuts Black Codes out of this country's tradition categorically and completely, as if the majority does not see, or understand, the implications of making this excision. And the majority's exclusion operates indiscriminately and without clear definition. If the point of taking the Black Codes out of the equation is that they are not a valid part of our Nation's historical tradition, then the Court must provide guidelines on how to determine the type

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[14] Though the majority eschews this distinction here, in other contexts, certain of my colleagues have engaged in a similar analysis, concluding that discriminatory laws might still bear on the Court's considerations of constitutional questions. See, *e.g.*, *Ramos* v. *Louisiana*, 590 U. S. 83, 141–142 (2020) (ALITO, J., dissenting) ("If Louisiana and Oregon originally adopted their laws allowing non-unanimous verdicts for . . . reasons" related to "[r]acism, white supremacy, [and] the Ku Klux Klan," "that is deplorable, but what does that have to do with the broad constitutional question before us? The answer is: nothing").

[15] This type of nuanced analysis is important, for it values the historical experiences of Black people as targets of invidious race discrimination and ensures that they are not (here again) excluded from the constitutional baseline that *Bruen* purports to draw. Cf. R. Siegel, How "History and Tradition" Perpetuates Inequality: *Dobbs* on Abortion's Nineteenth-Century Criminalization, 60 Houston L. Rev. 901, 906 (2023) (noting that looking solely to history and tradition "elevate[s] the significance of laws adopted at a time when women and people of color were judged unfit to participate and treated accordingly by constitutional law, common law, and positive law").

of history that *can* be considered to ensure that this inquiry does not become a free pass to quick invalidation.[16]

Here, Hawaii has presented evidence that, even though the relevant gun restriction was a Black Code, it violated the Fourteenth Amendment but not the Second—evidence the majority ignores. For example, when General Sickles announced the end of South Carolina's laws prohibiting gun possession by Black people in 1866, he declared: "The constitutional rights of all loyal and well-disposed inhabitants to bear arms will not be infringed." D. Sickles, General Order No. 1 in A Hand Book of Politics for 1868, p. 37 (E. McPherson ed. 1868). But he did not consider laws requiring express consent for armed entry—even those enacted as part of the Black Codes—among the laws that had offended the Second Amendment. Rather, in his view, no person (of any race) had the right to carry a firearm onto private land without consent. *Ibid.* In this same way, it appears that the Louisiana analogue on which Hawaii relies was unconstitutional, but perhaps not for the reason that would allow the majority to ignore it as evidence of the historical limits of the Second Amendment.[17]

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[16] By this I mean that the majority must explain how one is to go about accurately identifying such a verboten law. For facially neutral Black Codes, should courts consult legislative history to understand what the legislature was trying to do? How much racial motivation is too much? What about laws that were facially neutral and passed for seemingly neutral reasons, but were *enforced* discriminatorily? And finally, does only *racial* animus matter? What do we do about other types of animus? For example, consider the use of statutes that were prejudiced against Catholics. See *Kanter* v. *Barr*, 919 F. 3d 437, 457 (CA7 2019) (Barrett, J., dissenting). Does it offend history to use those?

[17] JUSTICE BARRETT's helpful recounting of the historical circumstances surrounding Louisiana's law proves the point. Louisiana's law and Hawaii's other analogues have the same basic "why" insofar as they were all enacted to protect property rights and to prevent the harms that can follow from unauthorized armed entry, including harms from poaching. These laws were also facially identical.

As JUSTICE BARRETT sees it, the difference between Louisiana's law and those of the other States was Louisiana's discriminatory intent: Louisi-

Confronting the origins of these laws is certainly uncomfortable. The Black Codes were ugly. And racist. And deplorable. Even now, long after their abolishment and the end of the Jim Crow era, Black Americans are *still* saddled with the ramifications of centuries of legally authorized exclusion, notwithstanding the much-heralded arrival of "colorblindness." See *Students for Fair Admissions, Inc.* v. *President and Fellows of Harvard College*, 600 U. S. 181, 409–411 (2023) (JACKSON, J., dissenting).

But the characteristics that make the Black Codes detestable do not automatically render these laws irrelevant to a fair assessment of the right to carry firearms, especially given how the Court assesses that right. The Court has decided to use history as the metric, and these laws are part of our Nation's history. So the Court must make an actual assessment of the relevance of what the historical record reveals. To be sure, it would certainly be most convenient for all concerned to skip past the nuance and ignore these painful realities. But choices have consequences: Where the Court has opted to tether its Second Amendment analysis to facts about America's past, it must contend with our Nation's *entire* history, warts and all.

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To do otherwise calls into question the legitimacy of the Court's endeavor to rely solely on historical guidance. It

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ana enacted *its* anti-poaching law with the illicit motive of keeping freedmen from being able to hunt and thereby sustain themselves. *Ante*, at 222–223, 224, n. 10 (concurring opinion). But even if that makes Louisiana's "why" relevantly different, this seems to be a Fourteenth Amendment problem, not a Second Amendment one. Louisiana's historical consent-to-carry law was identical to the consent-to-carry laws of other States, and all were enacted to prevent poaching and other related harms. That Louisiana's Legislature had a discriminatory intent when it chose to subject only former slaves to this restriction should be neither here nor there for *Bruen* purposes. There is no clear Second Amendment-based explanation for why Louisiana's decision to exercise the same power other States had used for the same reason—*i. e.*, to prevent poaching and the effects of poaching, including theft of game (admittedly in a racially discriminatory manner on Louisiana's part)—does not count when assessing what the Second Amendment permits under *Bruen*.

deepens race-based wounds, by classifying the experiences of those who have been historically excluded as categorically irrelevant. It empowers the Judiciary, by allowing the Court to cavalierly pick and choose which parts of the historical record count. And it exposes flaws in the test this Court has crafted—demonstrating, once again, that the discretion to cull the history lies with the Court and seems to operate in service of a single goal: preventing the government from responding to issues arising from the possession of firearms.

To be clear, I am not suggesting that courts *must* accept Black Codes as historical analogues. My point is merely that the Court cannot have it both ways. Either history does matter, and if so, *all* potentially relevant historical experiences must be thoroughly examined to determine whether they reflect our Nation's history and tradition of firearm regulation. Or, it does not, and the Court should just admit that the test it has created is boundless, allowing it to accept or excise any historical analogue it chooses for any reason it prefers.

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In my view, our adoption of the *Bruen* test was a grave mistake. See, *e. g.*, *Rahimi*, 602 U. S., at 740–747 (JACKSON, J., concurring); *Hemani*, 608 U. S., at 802–806 (same). But to the extent the Court has embraced this test, surely it cannot shirk responsibility for adhering to *Bruen*'s tenets, whatever the result.

Today, the majority fails to faithfully apply its own jurisprudence. It alters the *Bruen* test and overrides Hawaii's considered—and in my view, constitutionally sound—judgment that the property interests of its residents should be protected against unauthorized armed entry. For the reasons I have explained, Hawaii's law is an exercise of state regulatory power that has historically sounded in property law, not the Second Amendment. And it is also entirely con-

sistent with a lengthy historical tradition of States enacting similar restrictions for exactly this reason.

Yet, the majority concludes that *Bruen* requires striking down Hawaii's law as unconstitutional. From this day forward, it will be difficult to view *Bruen* as anything more than a fig leaf. While purporting to constrain judges, the majority has unmasked the discretionary choices that lie beneath the Court's decisions regarding which analogues are "vastly different," *ante*, at 207–208, and whose historical experiences are worthy of inclusion. Of course, the real irony is that the Court's effort to rein in judicial discretion has resulted in an arbitrary rule that unleashes judges to thwart gun regulation at every turn.

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